

The Merchant Shipping (Continuous Discharge Certificates) Rules, 1960

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[Rule THE-MERCHANT-SHIPING-CONTINUOUS-DISCHARGE-CERTIFICATES-RULES-1960 of 1960](#)

[Published on 17 December 1960](#)

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[The Merchant Shipping \(Continuous Discharge Certificates\) Rules, 1960](#)

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[1910.](#)

[G.S.R. 1557 dated 17th December, 1960. - In exercise of the powers conferred by Section 457 of the Merchant Shipping Act, 1958 \(](#)

[44 of 1958](#)

[\), the Central Government hereby makes the following rules, namely :-](#)

[1.](#)

[Short title, commencement and application.](#)

(1)
These rules may be called the Merchant Shipping (Continuous Discharge Certificates) Rules, 1960.

(2)
They shall apply to seamen engaged on ships other than home trade ships of less than 200 tons gross.

(3)
They shall come into force on the 1st January, 1961.

2.
Definitions.

- In these rules

(a)
"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)
"C.D.C." means a continuous discharge certificate, also called continuous certificate of discharge :

(c)
"Form" means a form appended to these rules;

(d)
"Shipping Master" means a shipping master of a port appointed under sub-section (1) of Section 11 of the Act and includes the officer in charge of the office at any other port where the business of shipping office is conducted.

3.
Application for C.D.C.

(1)
Any person desiring to be employed as a seaman from a port in India at which a shipping office has been established or a port where the business of shipping office is conducted may apply to the shipping master of the port for the issue of a C.D.C.

(2)
Every such application shall contain a declaration that a C.D.C. has not previously been issued to the applicant and shall also be accompanied by two copies of the applicant's photograph. [**]
[Omitted by G.S.R. 312, dated 8.5.90]

4.
Issue of C.D.C.

(1)
The Shipping Master in cases where he decides to issue a C.D.C. shall, after the descriptive particulars of the applicant have been entered in and the photograph affixed to the C.D.C., affix his signature and official seal on the photograph and issue the same to the applicant.

(2)
A C.D.C. issued under these rules shall be in Form I and shall be serially numbered. It shall also bear the name of the port of issue and the distinguishing code letters of the port as specified in the Annexure to these rules.

5.
Register of C.D.C.s.

(1)
Shipping Master shall maintain a register of C.D.Cs. issued to seamen from his port in Form 2, which shall contain all the particulars recorded in the C.D.C.

(2)
All subsequent entries in the C.D.Cs. issued from the port shall also be recorded in the register.

6.
Entry on Discharge.

(1)
At the time of discharge, the seaman shall, if he so desires, be granted by the Master of the ship on which he has been serving an entry in the C.D.C. specifying the particulars referred to in sub-section (2) of Section 120 of the Act.

(2)

The entries made in the C.D.C. shall be attested by the Shipping Master of the port of discharge, and thereafter the C.D.C. shall be returned to the seaman concerned.

7.

Period of validity.

- A C.D.C. granted under these rules shall be valid till it is withdrawn, cancelled or suspended under these rules.

8.

Report of desertion etc.

- For the purposes of Section 192 of the Act, the proper officer shall be the Shipping Master.

9.

Cancellation or suspension of a C.D.C.

(1)

Where on a report received by him the Director-General is satisfied that a seaman has deserted his ship in the circumstances specified in Section 192, or that he has been convicted of an offence of the nature referred to in Section 195(2), the Director-General may direct the Shipping Master who issued the C.D.C. to withhold or suspend it for a specified period or cancel it.

(2)

Where a C.D.C. is withheld, suspended or cancelled under sub-rule (1), the Shipping Master shall intimate the fact to the seaman concerned to his last known address and the Shipping Master of other ports in India and shall also endorse the fact in the original C.D.C. if and when available.

10.

Register of C.D.Cs. cancelled, etc.

- The Shipping Master shall maintain a register of C.D.Cs. which have been withheld, cancelled or suspended under rule

9.

11.

C.D.C. not to be issued in certain cases.

- No. C.D.C. shall be issued to a seaman under these rules to whom a C.D.C. has previously been issued from any port.

12.

Duplicate C.D.C.

- [**]

[Omitted by G.S.R. 312, dated 8th May, 1990]

Where a C.D.C. issued under these rules is mislaid, lost, destroyed, defaced or mutilated, the seaman concerned may apply to the Shipping Master of the port concerned to issue a duplicate copy of the C.D.C. with all the entries of previous voyages or a summary of them recorded therein.

13.

Return of C.D.Cs.

- Every Shipping Master shall, at the beginning of each quarter, furnish to the Director-General a return in form 3 of the number of C.D.Cs. issued to seamen from his port during the previous quarter.

14.

Certificates of Discharge.

(1)

A seaman may apply to the shipping Master of a port for the issue to him of a certificate of discharge applicable for any specified voyage instead of a C.D.C.

(2)

The certificate of discharge referred to in sub-rule (1) shall be in form 4.

(3)

The provisions of rules 8 and 9 shall apply to certificates of discharge issued under this rule.

Form I

[See rule 4(2)]

Port 127

Continuous-Discharge Certificate

Issued under Merchant Shipping (Continuous Discharge Certificates) Rules, 1960

Photograph

& Official Stamp

Note.-The above photo should be authenticated by impressing the Shipping Office Stamp and the Signature of the Shipping Master partly on the photo and partly on the book.

Name of the Seaman

Code No. of the

Port

and Registered No.

of the Discharge

Book

Notice to Seamen

(1)

Seamen are informed that this continuous discharge certificate should be produced and handed to the Shipping Master, or Consul when signing Articles of Agreement, so that the engagement column may be filled in and the certificate give into the safe keeping of the Master of the ship.

(2)

Should the seaman desert or fail to join, his book will be deposited by the Master with the Shipping Master, or Consul at the port where he left the ship, who will forward it to the Shipping Master of the port of engagement.

(3)

Should this certificate become defaced or torn or filled up or should it get lost the shipping Master will, on application, arrange for the issue of a duplicate [***]

[Omitted by G.S.R. 312, dated 8th May, 1990]

(4)

Seamen are warned not to correct, alter or in any way tamper with the entries on this certificate as they are liable to be prosecuted if they do so.

Note. - Should this certificate come into the possession of any person to whom it does not belong, it should be handed to the Shipping Master, or the nearest Mercantile Marine Office, or be transmitted to the Directorate General of Shipping, Bombay.

Dis. A.

Issued by

THE

GOVERNMENT OF INDIA

CONTINUOUS

Name

of Seaman, in full Name of Father

Date

of Birth

Height

Colour

of

Complexion

Feet

Inches

(1)

Eyes

(2)

Hair

(1)

(2)

Record of any award or commendation received by the seaman. The entry should be signed by the Shipping Master,

dated and stamped.

Foreign-going

Home Trade

Discharge Certificate

Place

of Birth and Nationality

Religion

Certificate

of competency, if any

Grade

Number

Tattoo

or other Distinguishing Marks

Issued at the Port of

Date

Signature of Seaman or left hand thumb Impression} Shipping Master.

*Strike out as necessary.

(1)

Medical Roster No. & Port

(2)

Pre-Sea Training Certificate No. and place of issue.....

(3)

Seamen's Employment Office Registration No. Port & Date.....

(4)

Certificate of Efficiency as a Life-boatman.....

(5)

No. of Certificate of Competency in cooking.....

Summary of former Certificate of Service

Character

V.

Good

Good

Declined

to report

Endorsement

Not required

No.

of Voyages

Ability

Conduct

VOYAGES

NOT COMPLETED

Steamers

No.

of Voyages

Rating

No.

of Voyages

CONTINUOUS

No.

[*]

[These columns are to be filled in at time of engagement]

Name

of ship and official

Number,
and tonnage

Date

& place of

[*]

[These columns are to be filled in at time of engagement]

Rating

Engagement

Discharge

1

2

3

4

5

6

7

8

9

10

11

DISCHARGE CERTIFICATE

Description

of voyage

Copy

of Report of Character

Signature

of Master and of Shipping Master/Consular officer with official
stamp

For

ability

For

general conduct

1

(1)

(2)

2

(1)

(2)

3

(1)

(2)

4

(1)

(2)

5

(1)

(2)

6

(1)

(2)

7

(1)

(2)

8

(1)

(2)

9

(1)

(2)

10

(1)

(2)

11

(1)

(2)

In Engineer's Books insert Horse Power. In Radio Officer's Books insert gross tonnage and wireless classification of ship.

CONTINUOUS

No.

Name

of ship and official Number, and tonnage

Date

& place of Engagement Discharge

Rating

12

13

14

15

16

17

18

19

20

21

22

DISCHARGE

CERTIFICATE

Description

of voyage

Copy

of Report of Character

Signature

of Master and of Shipping Master/Consular officer with official stamp

For

ability

For

general conduct

(1)

(2)
12
(1)
(2)
13
(1)
(2)
14
(1)
(2)
15
(1)
(2)
16
(1)
(2)
17
(1)
(2)
18
(1)
(2)
19
(1)
(2)
20
(1)
(2)
21
(1)
(2)
22
(1)
(2)

In Engineer's Books insert Horse Power. In Radio Officer's Books insert gross tonnage and wireless classification of ship.

CONTINUOUS

No.

[*]

[These columns are to be filled in at of engagement]

Name

of ship and official

Number,

and tonnaget

Date

& place of Engagement[*]

[These columns are to be filled in at of engagement]

Discharge

[*]

[These columns are to be filled in at of engagement]

Rating

23

24

25

26

27

28

29

30

31

32

33

DISCHARGE

CERTIFICATE

Description

of voyage

Copy

of Report of Character

Signature

of Master and of Shipping Master/Consular officer with official

stamp

For

ability

For

general conduct

23

(1)

(2)

24

(1)

(2)

25

(1)

(2)

26

(1)

(2)

27

(1)

(2)

28

(1)

(2)

29

(1)

(2)

30

(1)

(2)

31

(1)

(2)

32

(1)

(2)

33

(1)

(2)

In Engineer's Books insert Horse Power. In Radio Officer's Books insert gross tonnage and wireless classification of ship.

CONTINUOUS

No.

[*]

[These columns are to be filled in at time of engagement.]

Name

of ship and official Number, and tonnage

Date

& place of Engagement[*]

[These columns are to be filled in at time of engagement.]

Discharge

[*]

[These columns are to be filled in at time of engagement.]

Rating

34

35

36

37

38

39

40

41

42

43

44

DISCHARGE

CERTIFICATE

Copy

of Report of Character

Signature

of Master and of Shipping Master/Consular officer with official stamp

Description

of voyage

For

ability

For

general conduct

34

(1)

(2)

35

(1)

(2)

36

(1)

(2)

37

(1)

(2)

38

(1)

(2)

39

(1)

(2)

40

(1)

(2)

41

(1)

(2)

42

(1)

(2)

43

(1)

(2)

44

(1)

(2)

In Engineer's Books insert Horse Power. In Radio Officer's Books insert gross tonnage and wireless classification of ship.

CONTINUOUS

No.

[*]

[These columns are to be filled in at time of engagement.]

Name

of ship and official Number, and tonnaget

Date

& place of Engagement[*]

[These columns are to be filled in at time of engagement.]

Discharge

[*]

[These columns are to be filled in at time of engagement.]

Rating

45

46

47

48

49

50

51

52

53

54

DISCHARGE

CERTIFICATE

Copy

of Report of Character

Signature

of Master and of Shipping Master/Consular officer with official

stamp

Description

of voyage

For

ability

For

general conduct

45

(1)

(2)

46

(1)

(2)

47

(1)

(2)

48

(1)

(2)

49

(1)

(2)

50

(1)

(2)

51

(1)

(2)

52

(1)

(2)

53

(1)

(2)

54

(1)

(2)

HOME

ADDRESS OF SEAMAN

(To

be entered by the Seaman)

NEXT-OF-KIN

OF SEAMAN WITH ADDRESS

Name

& Relationship

.....

Address

.....

Register Of Continuous Discharge Certificate

Form 2

(See rule 5)

Issued by the Government of India

REGISTERED

NO OF THE DISCHARGE BOOK

DATE

OF ISSUE OF CERTIFICATE

.....

(1)

Medical Roster No. & Port

.....

(2)

Pre-Sea Training Certificate No. and place of issue

.....

(3)

Seamen's Employment Office Registration No. Port & Date

.....

(4)

Certificate of Efficiency as a

Life-boatman.....

(5)

No. of Certificate of Competency in

Cooking.....

Name

of the seaman in fullDate of

Birth..... Place of Birth and Nationality.....Race

or Religion

{

SEAMEN'S

PHOTOGRAPH

}

Certificate

of Competency, if any

Village

.....

Thana

.....

[*]

[Note-Stop orders should be written in red ink to arrest attention. Stop orders and other orders are to be cancelled as soon as they cease to operate. All entries, additions and alterations in this register must be initialled by the Shipping Master and they will not, otherwise be recognised. Clerks are warned that they are liable to be prosecuted if they tamper with this register.]

Name

of seaman's father

P.

O

Grade
Number
District
.....
Height
Colour
of
Complexion
.....
Tatto
or other Distinguishing marks
Feet
Inches
Eyes
Hair
Record
of any award or commendation received by the seaman.
(The
entry should be signed by the Shipping Mas Fr. dated and stamped)
SUMMERY
OF FORMER CERTIFICATE OF SERVICE.
Character
V.
Good
Good
Declined
to report
Endorsement
not required
No.
of Voyages
Signature
of seaman or Issued on-left and thumb impression.
Ability
Conduct
Voyages
Not Completed
Steamers
No.
of Voyages
Rating
No.
of Voyages
SHIPPING
MASTER
No.
[*]
[These columns are to be filled in at time of engagement.]
Name
of Ship and official number and tonnaget
Date

and place of

[*]

[These columns are to be filled in at time of engagement.]

Rating

Description

of voyage

Copy

of Report of Character

Master's

Shipping

Master Initial

Engagement

Discharge

For

ability

For

general conduct

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

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37
38
39
40
41
42
43
44
45
46
47
48
49
50
51
52
53
54
55
56
57
58
59
60

Form 3

(See rule 13)

Return in respect of Continuous Discharge Certificates issued to seamen during the quarter endingat the port of.....

No. of Continuous Discharge Certificates issued

Deck

Engine

room

Saloon

Total

Foreign-going

Home

Trade

No. of duplicate Continuous Discharge Certificates issued.....

Shipping Master

To,

The Director General of Shipping,

Bombay.

Form 4

(See rule 14)

Certificate Of Discharge

(Section 119 of the Merchant Shipping Act, 1958)

No.....

Name

of ship

Prescribed
by the Government of India
Seaman
discharged from
Official
Number Port of Registry
Name
and Official Number of ship
Port
of Registry
Tonnage
Description
of Voyage Employment
Name
of Seaman
Name
of Seaman
Place
of Birth
Date
of Birth
Capacity
Date
of Engagement
Date
of Discharge
Place
of Discharge
Date
of Issue Signature of Shipping Master
Height
and Identification marks
Date
of sailing from Home Port
Date
of arrival at Home Port

I
Certify that the above particulars are correct, and that the
above-named Seaman was discharged accordingly.

Dated
this
Seaman
day
of 19
Master.

[Annexure

[Substituted by G.S.R. 305, dated 8th March, 1973.]

(See rule 4)

Names of ports and their code letters for purposes of issue of Continuous Discharge Certificate

S.

No.

Name	
of port	
Code	
letters	
1	
2	
3	
1	
BADAGARA	
BD	
2	
BALASORE	
BL	
3	
BHEEMUNIPATNAM	
BP	
4	
BOMBAY	
BY	
5	
CALCUTTA	
CL	
6	
CALINGAPATNAM	
CP	
7	
CHANDBAU	
CB	
8	
COCHIN	
CN	
9	
CANNANORE	
CR	
10	
CANNDAPUR	
CD	
11	
CUDDALORE	
CU	
12	
GOPALPUR	
GP	
13	
HONAVAR	
HO	
14	
KAKANADA	
KA	
15	
KANDLA	

KL
16
KARWAR
KR
17
KOZHIKODE
KE
18
MADRAS
MS
19
MONGALORE
MA
20
MORMUGAO
MG
21
MASULIPATNAM
MM
22
NAGAPATTINAM
NM
23
PAMBAN
PM
24
PONNANI
PN
25
PORTO
NOVO
PV
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